

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF KINGS

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 MARIE BLACKMAN, :

Plaintiff,

-against-

:

VERIFIED COMPLAINT

CITY OF NEW YORK, POLICE LIEUTENANT
 DEREK EPSTEIN, POLICE OFFICER MICHAEL
 JOSEPH :

Index No.:

Jury Trial Demanded

Defendants.

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Plaintiff, MARIE BLACKMAN, by his attorney, MASAI I. LORD Esq., alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff MARIE BLACKMAN brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York State common law and statutes, for violations of her civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.
2. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.

3. That at all times hereinafter mentioned, the defendants DEREK EPSTEIN and MICHAEL JOSEPH were employees of the New York City Police Department, acting in their capacity as police officers or lieutenants and under color of law. DEREK EPSTEIN and MICHAEL JOSEPH were working for the 70th precinct on March 3, 2019.
4. MICHAEL JOSEPH'S shield number is NO. 24346 as of March 3, 2019. DEREK EPSTEIN'S shield number is NO.1318 as of March 3, 2019.
5. That all acts and incidents complained of herein occurred in Kings County, City, and State of New York.
6. That within 90 days after the state law claim of Malicious Prosecution accrued, plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the place and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendants by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.
7. That plaintiff appeared for a hearing pursuant to § 50-H of the General Municipal Law on or about February 05, 2020.
8. That the defendants have not adjusted, settled or paid the same.

9. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York State law claims are based.
10. That all conditions and requirements precedent to the commencement of this action have been complied with.
11. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR § 1601, by reason of the fact that defendants owe plaintiff a non-delegable duty of care.
12. Pursuant to CPLR § 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR § 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.
13. Pursuant to CPLR § 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR § 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

14. That by reason of the foregoing, this plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS

15. Plaintiff Marie Blackman is the owner and operated of Rose Fantasy, an Americana and West Indian Restaurant, located at 1233 Flatbush Avenue in Brooklyn New York.

16. Mrs. Blackman had been operating the restaurant for approximately four years prior to her arrest on March 09, 2019.

17. The owner and cook at the small restaurant, Ms. Blackman hired two employees, one as a waiter and one as a kitchen assistant.

18. Ultimately, due to the consistent harassment from the New York Police Department generally and Lieutenant Epstein generally, Mrs. Blackman had to close her restaurant at the end of March 2019.

19. This business grossed over \$100,000 the year prior, in 2018.

The Long History of Harassment From the NYPD and Lieutenant Epstein

20. Initially, police came to the Restaurant soon after it opened. They went to Restaurant as part of investigations in the area. At no time was Mrs. Blackman a suspect in any offense.
21. This investigating involved looking at the restaurant's video cameras or inspecting the restaurant. Until 2017, this occurred about three times a month.
22. In 2017, Lieutenant Derek Epstein would come to the restaurant approximately three times a week. He usually came to the restaurant with a partner but sometimes he came alone.
23. Lt. Epstein would harass the customers while they were eating, even going so far as to ask customers if there was alcohol in their lemonade while they were drinking and eating their meal.
24. Mrs. Blackman twice went to the Captain of the 70th precinct complaining about Lt. Epstein's harassment. Her complaints also indicated that Lt. Epstein said racist comments, including that there were "too many black businesses on this stretch."
25. On another date, Lt. Epstein made a comment about "you people," where he was confronted by a white woman in the restaurant who informed him that those comments are racist.

26. Lt. Epstein would often come into the restaurant for as long as twenty-five minutes, telling Ms. Blackman that “you people need to get out of this neighborhood.”

27. In total, until her arrest, Lt. Epstein made over fifty visits to the restaurant.

The Harassment Culminates in Mrs. Blackman’s False Arrest

28. In March of 2019, the Harassment escalated exponentially. On March 3, 2019, Lt.

Epstein, along with Officer Andres Jean-Pierre, made an arrest of a patron of Mrs.

Blackman’s restaurant.

29. At that event, a party for a three year old where the family paid Mrs. Blackman to rent out the Restaurant, Defendant Epstein falsely claimed that they were selling and serving alcohol at the Restaurant.

30. Lt. Epstein actually called Mrs. Blackman from the venue, stating that there were some empty Corona bottles outside the Restaurant and that he was arresting a person. Mrs. Blackman informed Lt. Epstein that the patron did not work for her. The patron’s case was ultimately dismissed.

31. Approximately a week later, Lt. Epstein went to Mrs. Blackman’s restaurant when it was closed. He said because of the previous bottles he saw outside the restaurant last week, he had to search the restaurant. He then entered the Restaurant without permission. This entry was illegal.

32. During this illegal search, Lt. Epstein went into the basement of the Restaurant, and into Mrs. Blackman's office. Finding Curacao, a sweet syrup with no alcohol, Lt. Epstein then attempted to charge Mrs. Blackman with illegally selling alcohol.

33. Lt. Epstein then arrested Mrs. Blackman, falsely claiming that she was selling alcohol while the restaurant was closed, and falsely claiming that she illegally possessed alcoholic beverages.

The Extended Harassment Leads To The Closure of The Restaurant

34. After the trauma of being arrested, Ms. Blackman shut down her Restaurant for two more days.

35. After careful consideration, involving the consistent harassment from the NYPD and Lt. Epstein, culminating in her unlawful arrest, she was forced to close the Restaurant.

36. Plaintiff was maliciously prosecuted by and at the direction of Lt. Epstein and Officer Joseph as well as other agents, servants and/or employees of the City of New York.

37. Thereafter, claimant was charged under Docket #CR-009482-19KN, for, *inter alia*, ABC 108, ABC 114(6), ABC 96(1), ABC 64(B); each of which are class A misdemeanors.

38. Plaintiff was then incarcerated until the following day before she was arraigned and released on his own recognizance.

39. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrences and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

40. These charges against plaintiff were based entirely on the false allegations and fabrications by DEFENDANTS EPSTEIN AND JOSEPH.

41. All criminal charges against plaintiff relating to this arrest were dismissed on or about November 25, 2019.

42. Plaintiff was acting lawfully when she was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including but not limited to, upon information and belief, agents employed by the New York City Police Department.

43. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

44. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.

45. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

46. As a result of the defendants' conduct, plaintiff has been caused to suffer, inter alia, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

FIRST CLAIM:
FALSE ARREST UNDER STATE AND FEDERAL LAW

47. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

48. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility, supervision, and authority of the NEW YORK CITY POLICE DEPARTMENT and its agents, servants and employees, and is liable to plaintiffs for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.

49. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK POLICE DEPARTMENT and CITY OF NEW YORK.

50. At the aforementioned times and locations, plaintiff was detained and held under the imprisonment and control of the defendants EPSTEIN and JOSEPH under false pretenses.

51. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.
52. At the aforementioned times and locations, due to the negligence of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, falsely arrested and imprisoned the plaintiffs without warrant, authority of law or probable cause therefore.
53. That the acts and conduct on the part of the individual defendants constituting the false arrest and false imprisonment consisted in part of the following: unlawfully and intentionally detaining and confining of plaintiff against his will and without his consent; unlawfully and intentionally detaining and confining plaintiffs without privilege, probable cause or valid legal process; unlawfully detaining and confining plaintiff through the unlawful arrest of plaintiff; unlawfully detaining and confining plaintiff; unlawfully arresting plaintiff and placing him in handcuffs without reasonable cause therefore, and committing such acts resulting in the unlawful arrest and imprisonment of plaintiff.
54. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.
55. That plaintiff was conscious of the confinement.

56. That as a direct, sole and proximate result of the false arrest, imprisonment, and excessive force, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.

57. By the actions described above, the individual and municipal defendants caused plaintiff to be falsely arrested and/or falsely imprisoned plaintiff without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitution of the State of New York.

58. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and standing within their community.

59. As a result of defendants' impermissible conduct, plaintiff demand judgement against defendants in a sum of money to be determined at trial.

SECOND CLAIM:
MALCIOUS PROSECUTION UNDER STATE AND FEDERAL LAW

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

61. At the aforementioned times and locations, plaintiff was detained and held under the imprisonment and control of the defendants and other unidentified officers of the NYPD present on the scene without probable cause.
62. At the time of the plaintiff's arrest, there was no credible evidence that plaintiff had committed a crime. Lieutenant Derek Epstein falsely that Mrs. Blackman had sold alcohol and that she possessed alcohol that she intended to sell at her Restaurant.
63. Defendants commenced this criminal action out of malice.
64. The criminal action against plaintiff has terminated in his favor.
65. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.
66. That plaintiff was conscious of the confinement.
67. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.
68. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitution of the State of New York and of the United States.

69. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and standing within their community.

THIRD CLAIM:
FAILURE TO INTERVENE UNDER FEDERAL LAW

70. Plaintiff repeats and re-alleges each and every allegation as if fully set forth herein.

71. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct, had a duty to intervene and prevent such conduct and failed to intervene.

72. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

73. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM:
NEGLIGENT AND INENTIONAL INFLICTION OF EMOTIONAL DISTRESS

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

75. The DEFENDANT, CITY OF NEW YORK, including but not limited to DEFENDANTS LIEUTENANT DEREK EPSTEIN, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.

76. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.

77. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

78. As a result of the foregoing, plaintiffs were caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, mental shock, mental anguish, anxiety, fear, humiliation, loss of freedom, psychological trauma and damage to his reputation and his standing within his community.

79. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

FIFTH CLAIM:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION,
AND TRAINING

80. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

81. Defendant CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

82. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violations of his civil rights, emotional distress, anguish, anxiety, fear,

humiliation, loss of freedom, and damage to his reputation and his standing within his community.

SIXTH CLAIM:
FABRICATION OF EVIDENCE

83. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

84. At the time of the plaintiff's arrest, there was no credible evidence that plaintiff had committed a crime. Lieutenant Derek Epstein falsely that Mrs. Blackman had sold alcohol and that she possessed alcohol that she intended to sell at her Restaurant.

85. The acts and conduct of the defendants were the direct and proximate cause of plaintiff's arrest and injury to the plaintiff, and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

86. All of the aforementioned acts of the Defendant CITY OF NEW YORK, and the individual defendants and their agents, servants, and employees, were carried out under the color of state law.

87. As a result of the foregoing, plaintiffs were caused to suffer physical, psychological and emotional injuries, violations of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

SEVENTH CLAIM:**DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

88. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
89. At the time of the plaintiff's arrest, there was no credible evidence that plaintiff had committed a crime.
90. All of the aforementioned acts of the Defendant CITY OF NEW YORK, and the individual defendants and their agents, servants, and employees, were carried out under the color of state law.
91. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
92. The acts complained of were carried out by the aforementioned individual defendants and other unidentified officers of the NYPD present on the scene, in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.
93. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to their customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, under supervision of ranking officers of said department.

94. The individual defendants, and defendant CITY OF NEW YORK, collectively and individually, while acting under color of state law, engaged in Constitutionally impermissible conduct that constituted a custom usage practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

95. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violations of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

EIGHTH CLAIM:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE PROCESS OF
LAW UNDER 42 U.S.C. § 1983

96. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

97. DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

98. The individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

99. At all times DEFENDANTS were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

100. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

NINTH CLAIM:
ASSAULT AND BATTERY UNDER STATE LAW

101. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

102. That, on or about March 9, 2019, DEFENDANTS, who were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

103. That, on or about March 9, 2019, DEFENDANTS committed an assault and battery knowingly, intentionally and willfully.

104. That, on or about March 9, 2019, the individual DEFENDANTS who committed the aforementioned assault and battery upon the Plaintiff were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK.

105. That on or about March 9, 2019, the assault and battery on the Plaintiff was without probable cause and was not the result of a lawful arrest.

106. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

TENTH CLAIM:
VIOLATIONS OF SECTION § 14-151 OF THE ADMINISTRATIVE CODE

107. That, from 2017 to March 9, 2019 DEFENDANT EPSTEIN engaged in Bias-based profiling against Mrs. Blackman.
108. That, the Bias-Based Profiling was not necessary to achieve a compelling governmental interest and was not tailored to that interest.
109. PLAINTIFF requests declaratory relief and reasonable attorney fees.

ELEVENTH CLAIM:
UNLAWFUL ENTRY UNDER STATE AND FEDERAL LAW

110. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
111. DEFENDANTS EPSTEIN and JOSEPH entered the Restaurant of Plaintiff, while it was closed, without a search warrant or an exigency. While inside the Restaurant, DEFENDANT EPSTEIN participated in a illegal search of the Business.
112. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.
113. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

DAMAGES

114. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution and under the laws of New York.
115. This action seeks damages from on or prior to January 1, 2017 through the present.
116. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.
117. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of family, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.
118. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
June 4, 2020

Yours, etc.

Lord & Schewel PLLC,



Masai I. Lord, Esq
Attorneys for Plaintiff
MARIE BLACKMAN
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for Plaintiff MARIE BLACKMAN. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
June 04, 2020



MASAI I. LORD
Counsel for Plaintiff